NATIONAL ASSEMBLY, 7TH PARLIAMENT

PARLIAMENTARY STANDING COMMITTEE ON HUMAN RESOURCES AND COMMUNITY DEVELOPMENT

REPORT OF THE MOTION ON DEVASTATING STRIKE AT THE NAMIBIAN BROADCASTING CORPORATION (NBC)

REPORT NO. 1 OF 2025

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COMMITTEE MANDATE

The Parliamentary Standing Committee on Human Resources and Community Development has the duty to -

a) consider any matter it deems relevant about the Offices, Ministries, Agencies, and all State-Owned Enterprises and Parastatals responsible for the following category of affairs, which shall, among other things, include:
   - Higher Education, Training and Innovation
   - Education, Arts and Culture
   - Urban and Rural Development
   - Sport, Youth and National Service
   - Labour, Industrial Relations and Employment Creation
   - and may for that purpose consult and liaise with relevant institutions;

b) liaise with NGOs, Agencies and Institutions to enquire and monitor programmes that are aimed at uplifting the social and economic conditions of communities;

c) monitor and enquire into all matters related to human resource development;

d) monitor and enquire into all matters related to the development of both rural and urban communities;

e) monitor and enquire into all matters related to the needs of the youth;

f) promote harmonious industrial relations in Namibia;

g) review and advise the National Assembly on the housing needs of the people;

h) enquire into and monitor international protocols, conventions and agreements that may affect the county's human resources and community development and where necessary make recommendations to the Assembly; and

i) perform other functions, tasks, and duties relating to parliamentary supervision of offices, ministries, agencies, or state-owned enterprises and parastatals as may be prescribed by the Assembly or in terms of an Act of Parliament.

COMPOSITION OF THE COMMITTEE

The Committee is comprised of the following Members of the National Assembly:

Hon. Nono Katjingisiua, MP
Chairperson

Hon. Elifas Dingara, MP
Deputy Chairperson

Hon. Agnes Mpingana Kafula, MP

Hon. Annakletha Sikerete, MP

Hon. Natangwe Ithete, MP

Hon. Herlinde Lucia Tjiveze, MP

Hon. Bertha Dinyando, MP

Hon. Elma Dienda, MP

Hon. Johanna Kandjimi, MP

Hon. Winnie Moongo, MP

Hon. Tjekero Tweya, MP

Hon. Diederik Vries, MP

Hon. Utaara Mootu, MP

Hon. Dr. Becky Ndjoze-Ojo, MP

Hon. Maria Kamutali, MP

Hon. Yvette Araes, MP

Hon. Maximalliant Katjimune, MP

Hon. Ephraim Nekongo, MP

Hon. Bernardus Swartbooi, MP

Hon. Hidipo Hamata, MP

Hon. Loide Iipinge, MP

Hon. Katrina Benz, MP

Hon. Agnes Tjiramba, MP

Hon. Aina Hanganeni Kodi, MP

Hon. L N Mumbala

CHAIRPERSON'S FOREWORD

This report of the Parliamentary Standing Committee on Human Resources and Community Development is on the Motion on Devastating Strike at the Namibian Broadcasting Corporation and sets out the evidence and observations made during the consultation meetings with the stakeholders. The report reflects the real pain and suffering the employees of the public broadcaster have endured due to the protracted strike. The employees have already paid a high price of living and may pay more if their issues are not addressed. The Committee's viewpoint suggests that there is a need to create a platform for continuous engagement to find lasting solutions to various problems at the workplace, for the benefit of all parties and to avoid life-threatening situations.

I, therefore, would like to thank my fellow Members of the Committee for their active engagement during the consultation process, all consulted relevant stakeholders for their cooperation in providing the appropriate information, and the Secretariat of the Committee for the support rendered to complete this important work.

ACRONYMS

ILO	-	International Labour Organization
MICT	-	Ministry of Information and Communication Technology
NAPWU	-	Namibia Public Workers Union
NAM-MIC	-	Nam-mic Financial Solutions (Pty) Ltd
NBC	-	Namibian Broadcasting Corporation
NIPAM	-	Namibia Institute of Public Administration and Management
PSUN	-	Public Service Union of Namibia
TCTC	-	Total Cost to Company
TOR	-	Terms of Reference

EXECUTIVE SUMMARY

The Parliamentary Standing Committee on Human Resource and Community Development received a motion tabled in Parliament on the labour relation problems at the Namibian Broadcasting Corporation (NBC). The importance of labour relations in any organisation cannot be over-emphasized as it is critical to achieve organizational goals and ensure productivity. Hence, when employees raise grievances, such grievances should be addressed and resolved amicably within a reasonable time to avoid conflict at the workplace.

The NBC was no exception and employees' demands for salary increments and other benefits including the agreed five and two per cent (5.2%) salary increase backdated for twelve (12) months and for all one hundred thirty-four (134) contract workers to be absorbed on a full-time basis were not addressed over some time.

The Committee, having the oversight responsibility over labour, industrial relations and employment creation, undertook regional consultative meetings with relevant stakeholders to investigate issues that led to the devastating strike at the NBC and its subsequent implications on employees' well-being. The stakeholders include the NBC management, the Ministry of Information, Communication and Technology, the Ministry of Labour, Industrial Relations and Employment Creation, the Public Service Union of Namibia, and the Namibia Public Workers Union.

During the consultations, the Committee found that for several years' employees of NBC have endured economic hardships and experienced personal and work-related challenges as a result of continuous disregard by the NBC Board of Directors and executive management to attend to their concerns and demands for improvement of their salaries and conditions of service. Other complaints included unpaid overtime, lack of resources, workload, dilapidated infrastructure, outdated equipment, and the demand for contract workers to be absorbed and offered permanent contracts of employment.

The Committee made recommendations to the relevant stakeholders for immediate implementation to resolve labour and industrial relations problems at NBC. This includes an amendment to the Labour Act No. 11 of 2007 to protect the rights of both employers and workers.

1. INTRODUCTION AND BACKGROUND

1.1. In November 2021, the Motion on the Devastating Strike at the Namibian Broadcasting Corporation was tabled in the National Assembly. It was then referred to the Parliamentary Standing Committee on Human Resources and Community Development for further scrutiny and report back to the Assembly.

1.2. The motion highlighted concerns expressed by the employees regarding huge performance bonuses to the amount of five million four hundred thousand Namibian dollars (N$5,4 million) paid to the management cadres in 2021 were not explained to the satisfaction of the employees.

1.3. Furthermore, the decision by NBC to buy a motor vehicle worth one million nine hundred thousand Namibian dollars (N$1,9 million) for the Director-General contributed to the workers' frustration and the intolerable situation at NBC.

1.4. Moreover, three (3) computers from the Finance Department went missing or stolen without a trace and no criminal case has been opened with the police. It was alleged that the computers contained relevant financial information relating to the performance bonuses paid to the executives and the transactions about the motor vehicle purchased for the Director General by the corporation on top of his existing motor vehicle benefit.

1.5. Since December 2020, the NBC executives have not sympathized with the workers but instead continued to show ignorance and paid no attention to the socio-economic welfare of its employees by negotiating in bad faith during discussions aimed at reaching an agreement.

1.6. Although the strike matter was brought before the Office of the Labour Commissioner for conciliation, the negotiation process reached a deadlock, resulting in the issuance of a certificate of an unresolved labour dispute. NBC also took arbitrary decisions to cut employees' leave payouts from ninety (90) to four (40) days when employees leave the service of NBC and discontinued annual salary notch increments. All these decisions were expected to be implemented by 1 April 2022.

1.7. Finally, the majority of NBC workers voted overwhelmingly in favour of the industrial action or strike that started on 22 April until 25 May 2021 and only ended after NBC instituted a "no work no pay" rule. Although the strike affected the broadcasting programmes and services both on radio and television for the period of the strike, in the end, it was the NBC workers who suffered severely after the strike as they were

subjected to unilateral, unjust and unreasonable salary deductions for a period of five (5) to six (6) months without their consent.

2. TERMS OF REFERENCE

The terms of reference for the task were, among others;

2.1. To investigate the events that took place at NBC before, during and after the strike;

2.2. To establish why the NBC executive management was exclusively given N$5.4 million;

2.3. To find out why the NBC Board authorized the hefty bonuses for executive management while the corporation was in financial crisis and whether it was a financially prudent decision;

2.4. To find out why the Ministry of Information and Communication Technology allowed the payment of bonuses to NBC executives;

2.5. To establish what performance targets were achieved to guarantee performance bonuses for executive managers only and excluding other employees;

2.6. To establish circumstances surrounding the purchase of a motor vehicle worth N$1,9 million for the NBC Director General, and

2.7. What corrective measures have been taken to ensure such devastating situations or similar circumstances do not re-occur in future;

3. METHODOLOGY

3.1. The Committee visited NBC stations in Oshakati, Rundu, Katima Mulilo, Tsumkwe, Otjiwarongo, Swakopmund, Gobabis, Keetmanshoop and Windhoek and engaged NBC Regional Managers and employees below management cadre.

3.2. The Committee also met with the Ministry of Information Communication and Technology (MICT) as a key government stakeholder under which the public broadcaster resorts; the Ministry of Labour, Industrial Relations and Employment Creation; Office of the Labour Commissioner; the Board of Directors and Executive Management of NBC; the Public Service Union of Namibia (PSUN) as an interested trade union, and the Namibia Public Workers Union (NAPWU) as a recognized bargaining union that played a big role before, during and after the strike.

4. DISCUSSIONS

4.1. NBC MANAGERS AND EMPLOYEES BELOW MANAGEMENT LEVEL

4.1.1. Before the Strike

a) The Committee was informed that the main contributing factor that led to the strike was the five million four hundred thousand Namibian dollars (N$5,4 million) that was paid to the executive management and a selected few senior managers under the pretext of performance bonuses, and at the disadvantage of the employees who falls within the bargaining unit and who could not be awarded a salary increase for years since 2020 due to purported financial constraints. In addition, the workers complained about a million-dollar motor vehicle purchased for the Director General despite him having a vehicle allowance benefit. The new motor vehicle benefit scheme was reportedly only introduced during the second term of the Director General and at a time when NBC was struggling financially. The employees also argued that some of the managers who benefited from the performance bonuses indeed had again received the 13th check benefit.

b) This led to employees believe that since the company performed, they too deserved at least an increase because performance bonuses are supposed to be based on good performance just like improvement of employees' salaries is well linked to the good performance of the organization. The recognition agreement between NBC and NAPWU recognizes continuous salary hikes to be reviewed annually to ensure that employees are not living below the inflation rate.

c) In principle, there was a five and two percentages (5.2%) salary increment across the board which was agreed upon between NBC and NAPWU, but to the surprise of workers, it was turned down by the Board and they came up with a new proposal of a once off payment to the employees, ranging between ten thousand Namibian dollars (N$10,000) to fifteen thousand Namibian dollars (N$15,000) depending on the salary scale. Employees rejected the new offer since it was not based on the negotiated agreement. Again, the amount of seven million six hundred thousand Namibian dollars (N$7.6 million) the Board of Directors was offering to be divided among employees within the bargaining unit was not even available as the Board failed to offer any guarantee, but hinged on "if they could source that amount" from somewhere.

d) While the workers were still considering whether or not to accept the proposal for a one-off payment, NBC received an amount of one hundred twenty-seven million Namibian dollars (N$127 million) as part of its budget allocation from the Ministry of Information and Communication Technology. This amount represented a sixty-two per cent (62%) reduction on the corporation's previous allocation. It was then based on this reduced budget that NBC withdrew the once-off payment proposal as it could not afford the increment from the allocated budget.

e) The Regional Managers who fall within the middle management hierarchy of NBC and were part of the strike concurred with the occurrence of the events and briefed the Committee that initially, NAPWU informed the workers that the "no work no pays" rule would never take place. They felt that the strike could have been avoided, but it happened due to the failure of the union to negotiate in good faith. Employees only found out that the union was not genuine enough when they lost out on the strike. This situation became more severe when NBC started with substantial deductions from employees' salaries as the majority were left with nothing in their bank accounts which resulted in them defaulting on their financial obligations.

4.1.2. During the Strike

a) The Labour Act, 11 (Act 11 of 2007) Section 76 (1), states that "an employer is not obliged to remunerate an employee for services that the employee does not render during a strike or lockout in compliance with section 12(1)(a)", referring to "no work no pay" rule.

b) The employees testified that immediately after they voted to embark on the industrial strike, NBC started to employ divide-and-rule tactics and only those workers who indicated not to form part of the strike were allowed to enter NBC premises, while striking workers were locked out. Some employees were reportedly promised promotions and other incentives in exchange for undermining and sabotaging the collective strike action. This resulted in a divided workforce which resulted in the strike not yielding the desired results of forcing the NBC management to bend to the demands of the employees.

c) Furthermore, the Committee was informed that the NBC management procured a software called Movie Jay, as a way of keeping both the radio and television programmes running during the strike. The software was regarded as a tactic of

employing scab labour in the place of striking employees since the said software was not there before the strike.

d) The Committee also learned that employees' efforts to seek an audience with the Office of the Prime Minister and the Ministry of Information and Communication Technology to air their grievances could not produce any tangible feedback.

4.1.3. After the Strike

a) The Labour Act 11 (Act No, 11 of 2007), Section 12 (1) states that "An employer must not make any deduction from an employee's remuneration unless (a) the deductions is required or permitted in terms of a court order, or any law". Section 12 (2) of the Labour Act, states that "deductions made must not in aggregate exceed one-third (1/3) of an employee's remuneration. Furthermore, deductions should be agreed upon and consented to by individual employees before commencement. The mentioned section made provision for deductions to be paid over some time instead of being deducted once-off. Additionally, employees concerned should have been notified in writing before the commencement of the deductions from their salaries. Unfortunately, the above provisions of the Labour Act were not applied by the NBC and employees were not notified about the imminent deductions.

b) The end of the strike spelt the beginning of the suffering for the NBC employees. The Committee was informed of the humiliating and degrading experience when NBC started implementing unilateral and forced salary deductions without employees' consent. Painfully so, the formula used for deductions was not explained or clarified before they were effected. It was only in July 2022 that the Human Resource Department started to clarify how such amounts were accumulated and what formula was used for deductions. Employees indicated that they remained dissatisfied with the explanations as it was not compatible with the amounts deducted and some employees were left with a negative or zero balance on their salaries and bank accounts.

c) It is understood that NAPWU as the exclusive bargaining union was never consulted about the deductions and only learnt that NBC was deducting 20% upon inquiry from the Human Resource Office. Although the union demanded a verification of deductions which NBC did, the broadcaster refused to cooperate.

d) The worker's understanding was that the "no work no pay" principle was supposed to be effected on the month that they withheld their services. The rationale was

supposed to be that if the employer did so and the employees had gone back to work, the employer could not deduct their salaries afterwards. If ever this was done, it should have been done with consent from the affected employees depending on the affordability of individual employees. Despite the deductions not being agreed to by employees, this exercise went on for a period of five (5) to six (6) months, from June to November 2021.

e) The prolonged deductions have forced some employees into indebtedness while others resigned to access pension benefits to settle their financial obligations.

4.2. MINISTRY OF INFORMATION AND COMMUNICATION TECHNOLOGY (MICT)

4.2.1. The Ministry indicated that for the year under review, it has budgeted two hundred eighty million Namibian dollars (N$280 million) for NBC with an additional budget of one hundred million Namibian dollars (N$100 million) in the 2021 financial year, while NBC was expected to generate twenty-three per cent (23%) of the total income. The ministry bemoaned the fact that for thirty-three (33) years, no durable solutions were found towards NBC issues such as strategic re-positioning, governance, policy direction, and other interventions. It was therefore highlighted that there was a high need for proper environmental scanning and strategic intervention for NBC to be able to sustain itself going forward.

4.2.2. The Ministry said salary increment was a matter of affordability and since other public servants did not get increments for the past seven (7) years, it was also difficult to support the public broadcaster workers for salary increases. In addition, the ministry appeared concerned and criticized the "no work no pays" rule, and agreed that the rule itself as contained in the Labour Act lacked humanity, especially on salary deductions that left striking workers and their families negatively affected.

4.2.3. About the NBC working environment being toxic, the ministry said it all depended on individual behaviours towards the supervisors and not necessarily from top management. A training intervention was arranged with the Namibia Institute of Public Administration and Management (NIPAM) to address this concern.

4.2.4. The Ministry further concurred that the payment of bonuses to senior managers was supposed to be based on set targets and under certain conditions although it was a contractual obligation. Hence, the agreement was signed between the Board

of Directors and the Executive Management of the corporation. However, the ministry could not indicate what major achievements or targets the corporation has met to justify the huge bonuses.

4.2.5. On the funding model for NBC, the ministry said the dwindling budget allocation for the corporation remains a serious challenge and it is not sustainable for NBC to rely only on subscription revenue. Currently, only four (4) out of eleven (11) radio stations are profitable, Oshiwambo, Otjiherero, Damara/Nama and English (national radio), while others are being subsidized by the government. There is also a need to conduct an audit on NBC infrastructure and address the issue of co-sharing infrastructure such as towers with other role players in the industry to reduce expenses.

4.2.6. The Ministry said, together with the Ministry of Finance, provided additional funds to the NBC amounting to one hundred million Namibia dollars (N$100 million) as a once-off payment, which was not acceptable to the workforce. However, the national broadcaster was not in a position to increase salaries because of its financial position at the time.

4.2.7. The Ministry testified that the employees, through their bargaining union, had signed the strike rules, which explicitly stipulated the 'no work, no pay' rule, and witnessed that the money was deducted over five months which worsened the impact on the employees.

4.3. PUBLIC SERVICE UNION OF NAMIBIA (PSUN)

4.3.1. The Public Service Union of Namibia is a trade union representing Public Service employees in Namibia. The PSUN was not a bargaining trade union for NBC employees and was not involved in the strike or salary negotiations, but only came on board after the strike to assist NBC employees who were affected financially by the strike. According to the union, the strike was a very sensitive issue that requires a contemporary labour relations approach as it bears serious financial and economic implications. The union emphasized the necessity to comply with the law before, during and after the strike regardless of the situation one may find him or herself.

4.3.2. Since the union was not part of the devastating strike when it started in 2021, it opened its doors when some NBC employees approached their offices for financial support and the only way to be assisted was to join the union first. They assisted with soft loans by relaxing the requirements of their credit scheme so that workers

whose salaries were severely slashed after the deductions could qualify to apply. The qualifying amount for the credit loan was twenty-five thousand Namibian dollars (N$25,000.00). The union also confirmed the illegal deductions made from the employees' salary which commenced in May 2021.

4.3.3. The union indicated that there is a gap in the Labour Act that needs to be addressed, referring to the rule of "no work no pay" in the Labour Act 11 of 2007. In this regard, PSUN submitted to the Ministry of Labour, Industrial Relations and Employment Creation proposing amendments to the current labour law but to date, no response or action has been taken.

4.4. MINISTRY OF LABOUR, INDUSTRIAL RELATIONS AND EMPLOYMENT CREATION

4.4.1. The Ministry confirmed that the matter was brought before the Office of the Labour Commissioner and a dispute of interest and not rights was lodged by NAPWU on 27 January 2021 for better working conditions.

4.4.2. The Office of the Labour Commissioner looked for a Conciliator to assist the parties in reaching an amicable solution, but the negotiation process still did not produce the desired results. Thereafter, a certificate of unresolved labour dispute was issued after solutions could not be reached. Again, the parties concerned convened and came up with strike rules and the "no work no pay" rule was one of them in terms of section 76 of the Labour Act, and the parties reached an agreement on the strike on 25 May 2021. On whether the employees voted for the strike after the certificate of the unresolved dispute was issued, the Office of the Labour Commissioner could not confirm that there was a ballot vote after the decision to strike was taken.

4.4.3. However, the Ministry was quick to say, that the no work no pay agreement was reached before the strike and it is an internationally accepted practice in terms of the International Labour Organization (ILO) laws. Furthermore, the Ministry said it is currently amending the labour law and the "no work no pay" rule is being revised. However, since the matter was not a dispute of rights it was a challenging task for the ministry and its duty in the matter was more of a facilitation and mediation role.

4.4.4. On the issue of "Total Cost to Company" (TCTC) whereby NBC unilaterally changed workers' conditions of employment and whether it was implemented at

the right time, the ministry said an independent arbitrator was appointed to work on the matter and if parties are not happy with the decision of the arbitrator, they can appeal to the labour court. On the deductions, the ministry informed the Committee that if NBC employees were deducted more than what they were supposed to be deducted, the provisions of the Labour Act apply and if there was a disagreement, it was supposed to be brought to the Office of the Labour Commission for investigation, which was not done. To the contrary, the workers informed the Committee that the only case before the Office of the Labour Commissioner was the matter on progressive notches and the dispute on membership between NBC and NAPWU.

4.4.5. The Ministry felt that because of the magnitude of the strike, NBC was supposed to put up a structure in place after the strike consisting of the board, management, union and employees' representatives to create a supportive and conducive work environment for all.

4.4.6. The Ministry also complained that it is faced with the lack of arbitrators and inspectors in many regions and towns, and this hampers effective and timely solutions to labour disputes.

4.5. NAMIBIA PUBLIC WORKERS UNION (NAPWU)

4.5.1. Despite NBC being under the scope of operation for NAPWU, the union rejected that the Committee has mandate or oversight power over it. NAPWU raised this claim because the union felt that the way the public consultative meeting was set up did not conform to the principles of its operations unless the consultation was held off-camera.

4.5.2. After several interventions and explanations in understanding the mandate of the Committee and why the session was an open public consultation, the union continued its insistence that the Committee has no jurisdiction over it, further claiming that the mandate of the Committee was not across the board. As a result, the consultation meeting could not materialize due to the non-cooperative and self-important behaviours of NAPWU towards the Committee.

4.6. NBC BOARD OF DIRECTORS AND EXECUTIVE MANAGEMENT

4.6.1. Before the strike, NBC tried to avert the strike since it was in no position to afford the financial demands of the workers. The board and management informed the Committee that NAPWU was a recognized trade union at the time of the strike and

the strike rules (including the no pay no work rule) were set up and signed with the representative union. They also disputed the fact that deductions on employees' salaries for over a five (5) month period (June - October 2021) were illegal as they were fully explained to all workers and all processes were sanctioned by all involved parties.

4.6.2. The NBC said, during the period under review the corporation projected its earnings to be one-hundred-million Namibian dollars (N$100 000 000), but it made huge losses during the strike and only generated eighty million Namibian dollars (N$80 000 000) during that year. The corporation said it suffered another blow as the company did not have insurance to cover itself against the strike. It also claimed to have lost real reputation and commercial aspects of the business during the strike.

4.6.3. The broadcaster further denied that it withheld third-party payments for medical aid, housing and pension benefits during the strike, apart from other deductions that left some employees' net pay affected. It said, although there was no consent for deductions, they were made based on the agreement signed between NBC and NAPWU - no work no pay agreement.

4.6.4. NBC conceded that the implementation of the no work no pay rule appeared inhumane, it indicated that it is still committed to stabilizing labour relations in the corporation and the public broadcaster was prepared to revisit such strike agreements in the future.

4.7. FINANCIAL IMPLICATIONS ON EMPLOYEES AFFECTED BY THE STRIKE

4.7.1. Employees informed the Committee that the effects of the strike and their financial predicament had turned them into risk clients, banks could not grant them soft loans anymore, nor were they able to access bank overdraft facilities. The forced deductions from their monthly salaries pushed them into debt and their properties such as houses, vehicles and other assets they had accumulated over the years were re-possessed due to delayed or non-payments.

4.7.2. In addition, the employees complained that their statutory contributions and third-party payments such as Pay as You Earn, pension, medical aid, and insurance policies were not honoured even though NBC deducted these contributions from their salaries. Other important obligations of caring for their families and paying

for the education of their children were also badly affected, and municipality bills and other personal accounts went into arrears. As a result, many employees found themselves at the mercy of debt collectors due to default payments.

4.7.3. The Committee was informed that NAPWU wrote to NBC to provide letters to the employees to access the NAM-MIC Loan facility raging between fifteen thousand Namibian dollars (N$15,000) to fifty thousand Namibian dollars (N$50,000) to ease their financial burden, but NBC refused. The workers narrated how they had to survive by begging from family members, friends and neighbours. This scenario presented serious economic, psychological and emotional consequences which left many workers negatively depressed and demoralized, and in the end, it compromised their health.

4.8. THE IMPACT OF THE STRIKE ON CONDITION OF SERVICES

4.8.1. The employees complained that NBC took advantage of the vacuum left by the striking workers and started changing the conditions of employment at will. Among those policy changes were the discontinuation of annual progressive salary notches, the reduction of annual leave days' accumulation from the original ninety (90) to forty-five (45) days, and the implementation of the Total Cost to Company (TCTC) remuneration system. Of particular interest, was the TCTC system which was introduced only after the strike without consultation and which migrated workers who were employed on term contracts from the conventional pay system known as the Basic Plus Structure to the TCTC system without consent. It is understood that all employees promoted to new positions were forced to join the TCTC payment structure. Although the TCTC policy indicates that it is supposed to be for management positions only, it is now applied across the board. This enforcement has created discomfort among employees.

4.8.2. Some employees received letters of promotion without salary increment despite them being promoted to the next level or position. Although NAPWU proposed that all employees on short-term contracts be offered permanent employment with all benefits, NBC management only agreed to permanent employment with partial benefits, citing budgetary constraints. According to the workers, NAPWU agreed to this but on condition that it should not be indefinite. As a result, all one hundred thirty-four (134) employees who were on contract, were now employed permanently but without full benefits. For example, their medical aid only covers

the main members without including the dependents, and the employer only contributes fifty per cent (50%) instead of seventy per cent (70%) as was previously the case.

4.8.3. It was also reported that NBC had an internal Salary Advance Arrangement, which was aimed at assisting employees in times of need, for example, sickness, a death in the family or paying tuition fees, but this facility was cancelled after the strike, and employees viewed it as a punishment for partaking in industrial action. Employees also complained that they were no longer allowed to claim overtime on Saturdays unless they exceeded five (5) hours per Saturday and it also depends on the supervisors' willingness to approve such overtime claims. Employees also reported that they rarely receive travel allowance whenever they are travelling out of their duty station.

4.9. THE RELATIONSHIP BETWEEN NBC, NAPWU AND EMPLOYEES

4.9.1. There was a significant impact on employees' personal experiences, and many suffered emotionally and psychologically due to the strike. The relationship between employees and NBC management became tense and employees lost trust and confidence in the management. Employees complained that the management never tried to visit their offices countrywide or offer counselling services after the strike.

4.9.2. In 2021 there has been controversial communication between NBC and NAPWU regarding the union membership, that the union no longer holds the 51% plus one majority required to remain the exclusive bargaining unit at the broadcaster. To date, it is not yet clear to the workers where their bargaining status stands.

4.9.3. The current relationship between NAPWU as a recognized trade union and employees is no longer cordial, especially after the strike when the workers realized that the union was not being truthful to them throughout the strike period. They felt that information about the negotiations was not being communicated to them and that the union did not paint the true reflection of what was happening. When some employees realized that the union had let them down, they lost trust in NAPWU and resigned to join the rival union, PSUN. NAPWU also made little effort to engage with the workers during the strike and only came back to them in 2022 after the strike had ended. Furthermore, workers also complained that no programmes were brought in or designed to rebuild workers' morale and spirit after the strike.

4.10. CHALLENGES FACING NBC EMPLOYEES

With the demands that led to the majority of the public broadcaster workers staging an industrial strike, the NBC Regional Offices were found facing multiple challenges such as;

4.10.1. Lack of human resources and high workload;

4.10.2. Dilapidated office buildings, lack of renovations and upgrades, and worn-out furniture;

4.10.3. Outdated and obsolete equipment, such as; cameras, dialect system for editing and programming; streaming equipment; shortage of computers and laptops;

4.10.4. Some studios are not functioning and no air conditioners in studios and offices;

4.10.5. Lack of WI-FI / Internet services and employees' resort to using personal mobile phones;

4.10.6. At Tsumkwe, the radio station is only using !Xung-5 and Ju/humans-1 as dialects, while the area hosts other diverse ethnic groups such as Kavangos, Hereros and Damaras. The network coverage was reported as poor and not reaching other areas such as Mangeti and Maroelaboom. Ablution facilities were found to be non-functional, and lack of running water, and power failure was also reported as a major problem.

4.10.7. All the above difficulties demoralise some employees only working out of their passion and love for their work.

5. FINDINGS

5.1. The Ministry of Information and Communication Technology and NBC were reluctant to find a lasting and amicable solution to the strike;

5.2. NBC Management paid themselves performance bonuses amounting to N$5,4 million;

5.3. NBC bought a motor vehicle worth N$1,9 million for the Director General;

5.4. The provision of the "no work no pays" rule as it is currently in the Labour Act No. 11 of 2007 only favours the employers and undermines the workers' rights to partake in industrial action;

5.5. The agreed 5.2% salary increment or a once-off amount that was promised by the NBC management to the workers was never honoured;

5.6. NBC did not comply with Section 12 (2) of the Labour Act No. 11 of 2007 which states that any deduction on employees' disposable or net income should not exceed 1/3 of an individual monthly salary;

5.7. There are two pay structures at NBC, the Total Cost to the Company and the Basic Plus;

5.8. Lack of operational equipment and some equipment are obsolete and non-functional;

5.9. One hundred thirty-four (134) contract employees who have been employed from 2013 up to early 2022 and who occupied critical positions such as reporters, producers, camera personnel, and technicians, were only given permanent employment after the strike;

5.10. Three (3) computers went missing or got stolen with credible financial information about the corporation and no case was opened with the police to date;

5.11. Employees' benefits such as medical aid, annual salary progressive notches, annual leave days' accumulation, advance salary payment, and overtime performance, were either reduced or taken away after the strike;

5.12. Withholding of third-party payments by NBC contributed to many employees being blacklisted by banks and other financial institutions due to their inability to honour their financial obligations;

5.13. The social life and psychological well-being of employees were severely affected which led to alcoholism, drug abuse, indebtedness and suicidal thoughts;

5.14. A shop steward was victimized and dismissed after the strike;

5.15. A limited number of labour inspectors and arbitrators in many regions and towns in Namibia which contributes to delays in resolving labour disputes;

5.16. NAPWU was not open and honest with employees during the negotiation process due to a lack of communication with striking workers;

5.17. Proposals submitted to the Labour Advisory Council to amend the Labour Act of 2007 were not attended to.

6. CONCLUSION

The Committee would like to emphasize that dialogue was extremely important to the work of NBC, and which could have prevented the devastating strike which left many employees heartbroken. However, the entities involved in the tripartite agreement such as the management, union and workers failed to show pro-activeness which is considered essential to address burning issues affecting employees' workplace grievances. It also came out clearly that the failed bargaining process that led to the devastating strike lacked honesty and no thorough consultations were held with employees, thus leaving them vulnerable to the unfavourable decisions of the NBC management. Therefore, NBC should endeavour to create structural

avenues and platforms for engagements that are appropriate for the inclusion of workers' representatives in decision-making and corporate affairs to help solve the many socio-economic challenges affecting the workers.

7. RECOMMENDATIONS

7.1. The Ministry of Information and Communication Technology

7.1.1. The Ministry should review and improve the current subsidy to NBC to enable the public broadcaster to effectively deliver on its essential mandate to inform, educate and entertain the nation;

7.1.2. The Ministry should conduct an investigation and institute a forensic audit into the operations and financial affairs of NBC to determine misappropriations, wastage, and irregular expenditure, in particular, the performance bonuses of N$5,4 million for NBC Executives and the N$1,9 million used to purchase the motor vehicle of the Director General;

7.1.3. The Ministry should consistently monitor and enforce compliance at NBC and ensure that those responsible for the financial mismanagement at the corporation are held accountable and punitive measures meted out;

7.1.4. The Ministry should demand accountability from NBC about the three computers that went missing from the Finance Department of the public broadcaster and do more to ensure that the offenders are brought to book;

7.2. The Namibian Broadcasting Corporation (NBC);

7.2.1. NBC must reinstate and reverse all punitive policies it changed during or after the strike as they were designed and intended to either punish or victimize employees who took part in the industrial action;

7.2.2. NBC should immediately take all necessary corrective measures to reimburse all the employees who took part in the strike;

7.2.3. NBC should reverse the implementation of the Total Cost to Company pay structure which was implemented after the strike and stick to the Basic Plus pay structure which is more beneficial to the workers;

7.2.4. NBC Management must open a police case for the three (3) missing or stolen computers with immediate effect;

7.2.5. NBC should introduce a psycho-social support programme to rehabilitate and assist employees who suffered financially and emotionally due to its actions after the strike;

7.2.6. NBC should re-instate the shop steward who was dismissed with immediate effect;

7.2.7. NBC should continuously upgrade its infrastructure and equipment to maintain a conducive working environment that will enable employees to do their work effectively;

7.2.8. NBC should upgrade the tower at Tsumkwe to accommodate other radio stations;

7.2.9. NBC Board and Management should hold regular meetings with employees on the way forward to improve the working conditions and relationships in the organization; and

7.2.10. NBC and NAPWU should find each other to sort out their differences and create a conducive environment for the workers.

7.2.11. NBC should develop and implement a structured career development and promotion framework that ensures fair opportunities for employee growth, salary progression, and professional development. This framework should be transparent, merit based, and aligned with industry best practices to boost employee morale and retention.

7.3. The Ministry of Labour, Industrial Relations and Employment Creation

7.3.1. The Ministry should urgently amend the current Labour Act No. 11 of 2007 to protect the rights of both employers and workers equally as many of the provisions only serve the best interest of the employer such as the "no work no pay" rule;

7.3.2. The Ministry should make adequate provision for labour inspectors and arbitrators in all Regions and Towns in Namibia and ensure that labour disputes are resolved fairly and finalized within a reasonable time;

7.3.3. The Ministry should review the Labour Act to include the introduction of bargaining counsels in Namibia; and

7.3.4. The Ministry should ensure that all role players in the labour industry such as employers, trade unions and employee representatives are properly trained and inducted to fully understand their different roles in labour relations.

CHAIRPERSON'S SIGNATURE

HON. NONO KATJINGISIUA, MP
CHAIRPERSON OF THE COMMITTEE

18/02/2025
DATE